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SENATE BILL NO. 2151

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), which relates to required service of minimum percentage of sentence; conforming language; authorizing lower minimum imprisonment requirement; authorizing district attorney to file certain notice; requiring district attorney to consider certain factors; repealing 21 O.S. 2021, Section 13.1, as amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 13.1), which relates to required service of minimum percentage of sentence; repealing 21 O.S. 2021, Section 13.1, as last amended by Section 2, Chapter 18, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), which relates to required service of minimum percentage of sentence; repealing 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), which relates to required service of minimum percentage of sentence; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), is amended to read as follows:

Section 13.1. A. Persons convicted of:

- 1 1. First degree murder as provided for in Section 701.7 of this
2 title;
- 3 2. Second degree murder as provided for in Section 701.8 of
4 this title;
- 5 3. Manslaughter in the first degree as provided for in Section
6 711 of this title;
- 7 4. Poisoning with intent to kill as provided for in Section 651
8 of this title;
- 9 5. Shooting with intent to kill, use of a vehicle to facilitate
10 use of a firearm, crossbow, or other weapon, assault, battery, or
11 assault and battery with a deadly weapon or by other means likely to
12 produce death or great bodily harm, as provided for in Sections 644
13 and 652 of this title;
- 14 6. Assault with intent to kill as provided for in Section 653
15 of this title;
- 16 7. Conjoint robbery as provided for in Section 800 of this
17 title;
- 18 8. Robbery with a dangerous weapon as provided for in Section
19 801 of this title;
- 20 9. First degree robbery as provided for in Section 797 of this
21 title;
- 22 10. First degree rape as provided for in Section 1111 or 1114
23 of this title;
- 24

1 11. First degree arson as provided for in Section 1401 of this
2 title;

3 12. First degree burglary as provided for in Section 1431 of
4 this title;

5 13. Bombing as provided for in Section 1767.1 of this title;

6 14. Any crime against a child as provided for in Section 843.5
7 of this title;

8 15. Forcible sodomy as provided for in Section 888 of this
9 title;

10 16. Child sexual abuse material or aggravated child sexual
11 abuse material as provided for in Section 1021.2, 1021.3, 1024.1,
12 1024.2, or 1040.12a of this title;

13 17. Child sex trafficking as defined in Section 1030 of this
14 title;

15 18. Lewd molestation of a child as provided for in Section 1123
16 of this title;

17 19. Abuse of a vulnerable adult as defined in Section 10-103 of
18 Title 43A of the Oklahoma Statutes;

19 20. Aggravated trafficking as provided for in subsection C of
20 Section 2-415 of Title 63 of the Oklahoma Statutes;

21 21. Aggravated assault and battery as provided for in Section
22 646 of this title upon any person defending another person from
23 assault and battery; ~~or~~

24 22. Human trafficking as defined in Section 748 of this title;

1 23. Accessory to murder in the first degree or accessory to
2 murder in the second degree as provided for in Section 175 of this
3 title; or

4 23. Discharging a firearm at or into a dwelling or building
5 used for public or business purposes, as provided for in Section
6 1289.17A of this title,

7 or any attempt, conspiracy, or solicitation thereof, shall be
8 required to serve not less than eighty-five percent (85%) of any
9 sentence of imprisonment imposed by the judicial system prior to
10 becoming eligible for consideration for parole unless the district
11 attorney lowers the minimum service requirement pursuant to
12 subsection B of this section. Persons convicted of these offenses
13 shall not be eligible for earned credits or any other type of
14 credits which have the effect of reducing the length of the sentence
15 to less than eighty-five percent (85%) of the sentence imposed.

16 B. Notwithstanding subsection A of this section, the district
17 attorney, may at his or her discretion, file a notice with the court
18 at any time prior to final sentencing of the defendant stating for
19 any offense listed in subsection A of this section for which the
20 defendant is convicted, the defendant shall be required to serve not
21 less than sixty-five percent (65%) of any sentence of imprisonment
22 imposed by the judicial system prior to becoming eligible for
23 consideration for parole. Persons convicted of such offenses shall
24 not be eligible for earned credits or any other type of credits

1 which have the effect of reducing the length of the sentence to less
2 than sixty-five percent (65%) of the sentence imposed.

3 SECTION 2. REPEALER 21 O.S. 2021, Section 13.1, as
4 amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,
5 Section 13.1), is hereby repealed.

6 SECTION 3. REPEALER 21 O.S. 2021, Section 13.1, as last
7 amended by Section 2, Chapter 18, O.S.L. 2025 (21 O.S. Supp. 2025,
8 Section 13.1), is hereby repealed.

9 SECTION 4. REPEALER 21 O.S. 2021, Section 13.1, as last
10 amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025,
11 Section 13.1), is hereby repealed.

12 SECTION 5. This act shall become effective November 1, 2026.

13 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
14 February 24, 2026 - DO PASS
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